



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 7753 (EXTENSION)
SECOND REVISION September 17, 1986
FOURTH CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7753 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 30 1991

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

FMC Corporation
Philadelphia, PA

January 4, 1991

Monsanto Chemical Company
St. Louis, MO

January 14, 1991

Rhone-Poulenc Basic Chemicals Company
Shelton, CT

January 25, 1991



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1. Stauffer Chemical Company, Westport, Connecticut, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a certain flammable solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of yellow phosphorus in a tighthead drum and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Monsanto Company, St. Louis, Mo. - PTE-1.

2. BASIS. This exemption is based on Stauffer Chemical Company's application dated December 20, 1985, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Monsanto Company's application dated November 13, 1985,
supplemented by letter dated August 28, 1986.

3. HAZARDOUS MATERIAL (Descriptor and class). White or yellow (elemental) phosphorus in water, classed as flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Phosphorus, white or yellow, in water.

5. REGULATION AFFECTED. 49 CFR 173.190(b)(2).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is:

a. DOT Specification 17C steel drum having a non-removable head and a marked capacity not over 55 gallons.

b. Each drum may contain not more than 735 pounds of product and not less than 15 pounds of water.

c. Each drum, filled as specified, must be contained in a freight container from consignor to consignee as described in Stauffer Chemical Company's May 20, 1977 application and supplemental letter dated May 16, 1986, or in Monsanto Company's March 23, 1981 application (each employing a blocking and bracing design as illustrated therein) on file at the Office of Hazardous Materials Transportation (OHMT).

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. December 31, 1987.

Issued at Washington, D.C.:


Alan I. Roberts

Director

Office of Hazardous Materials Transportation

SEP 17 1986

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.